

		also demonstrated that on 4/21/26, it made a tender of the defense to Towman. (Sargenti Decl., ¶ 3, Ex. 1.) Finally, as the causes of action for indemnity and contribution focus primarily on responsibility for Plaintiff's alleged damages, the proposed amended cross-complaint would not greatly expand the facts and issues regarding the underlying incident. Miraloma is ORDERED to file the First Amended Cross-complaint within five days.
6	Martinez vs. Jimenez 2023-01365732 Motion to be Relieved as Counsel	The motion of attorney Yuri Voronin of Wade Litigation, APC to withdraw as attorney of record for defendant Joseph Jimenez is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.
7	Perez vs. West H&A LLC 2025-01532225 Motion to Quash Service of Summons CMC OSC re Failure to Comply with CRC 3.110(b) OSC re Failure to Appear	Defendants' Motion to Quash Service of Summons and Complaint is GRANTED. Defendant Nationstar Mortgage LLC (erroneously sued as Nationstar Mortgage, LLC) ("Nationstar") specially appears and moves under Code Civil Procedure section 418.10. Nationstar challenges the court's personal jurisdiction over it on the ground of improper service. Code of Civil Procedure, section 418.10, subdivision (a)(1), provides that a defendant may serve and file a notice of motion "[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her." "In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant. When a defendant challenges the court's personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (<i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413; see also <i>CenterPoint Energy, Inc. v. Superior Court</i> (2007) 157 Cal.App.4th 1101, 1118.) This may be shown by affidavits, declarations, or other competent evidence. (<i>CenterPoint Energy, Inc., supra</i>, 157 Cal.App.4th at 1118.) A plaintiff may serve an LLC either by the methods specified in the California Corporations Code or through methods permitted to serve corporations. (See Corps. Code § 17701.16, subd. (a) ["In addition to Chapter 4

		(commencing with Section 413.10) of Title 5 of Part 2 of the Code of Civil Procedure, process may be served upon limited liability companies ... as provided in this section.”].) Accordingly, an LLC may be personally served by delivering the summons and complaint to one of an enumerated list of individuals, including the designated agent for service of process. (Code Civ. Proc., § 416.10; Corps. Code, § 17701.16, subd. (b).) As an initial matter, Plaintiffs failed to use the mandatory Judicial Council Proof of Service of Summons (form POS-010). (See Code Civ. Proc., § 417.10, subd. (f).) While a computer-generated or typewritten form may be substituted for form POS-010, it must meet certain requirements. (Cal. Rules of Court, rule 2.150(a). Plaintiffs’ typewritten proof of service does not meet those requirements. (ROA 14.) The proof of service filed with the court indicates a copy of a document titled “Unlimited Civil Case Summons, Case # 30-2025-01532225 to Nationstar Mortgage LLC/dba Mr. Cooper, at 675 Anton Blvd, Costa Mesa, CA 92626” was personally served on Nationstar on 12/11/25. (ROA 14.) However, Nationstar’s evidence establishes its registered agent for service of process on that date was CSC - Lawyers Incorporating Service (“CSC”), located at 2710 Gateway Oaks Drive, Sacramento, CA 95833. (Ex. 1.) Nationstar’s evidence lists several CSC “agent authorized employees.” However, none have the surname “Cooper”. Plaintiffs have not filed an opposition. Therefore, they have not met their burden of proving the facts requisite to an effective service. The motion is granted.
9	Huynh vs. Williams 2024-01436961 Motion for Reconsideration Motion for Sanctions pursuant to CCP 128.7 CMC	Motion No. 1: The Motion for Reconsideration by Defendant Gerard Richard Williams III is DENIED. Defendant seeks reconsideration of the Court’s 7/8/25 order denying Defendant’s Motion to Compel the Clerk to Enter a Dismissal Order. Code of Civil Procedure section 1008(a) states, “(a) When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or